

exclusive property of Convera (or the applicable Convera Group Company). Accordingly, the Client must not distribute or disclose the Online Payment System to, or permit use of the Online Payment System by, any third party. The Client must not, directly or indirectly, decompile, disassemble, reverse engineer, or otherwise attempt to derive or discern the source code or internal workings of the Online Payment System. Notwithstanding that the intellectual property rights of the Online Payment System may be the property of a Convera Group Company and any other terms set out herein, the Client acknowledges that the Services here are provided exclusively by Convera and not the relevant Convera Group Company(ies), and none of the Convera Group Companies are holding themselves out to be providing the Services to the Client.

4.3 Termination of the Client's use of the Online Payment System. The Client agrees that Convera may terminate the Client's licence to access and use the Online Payment System at any time for any reason. Convera will provide written notification of such termination.

4.4 Intellectual Property Indemnity. Convera will indemnify and hold the Client harmless of any direct damages and costs awarded by a court of competent jurisdiction against the Client, which relate directly to a finding by such court that the Client's use of the Online Payment System in accordance with this Agreement infringed any copyright, patent, trade secret or other intellectual property right of a third party; provided, however, the Client must provide Convera with prompt notice of any actual or potential third party claim, and agree to allow Convera, to the extent it chooses, to defend and direct all activities relating to the defence and/or settlement of any such third party claim.

5. Online Payment System: Security

5.1 Digital Certificates. If the Client requests access to the Online Payment System, Convera may issue the Client a digital certificate(s) and if it does the Client will assume sole responsibility for use of such certificate(s). The Client agrees that the certificate(s) will be used only by the Client on the Client's premises or at the Client authorised remote locations.

5.2 Security of the Client Access Methods. The security of the Client's access to and transactions on the Online Payment System, including, but not limited to, the security and secrecy of the Client Access Methods, will at all times be the sole responsibility of the Client and will be administered by the Site Administrator. Convera hereby advises and the Client hereby acknowledges that:

- a) there are inherent risks of using online financial services such as the Online Payment System if the security of the Client Access Methods are not strictly maintained; and
- b) it is important (among other things) that the Client:
 - i. takes appropriate security measures to protect their devices and computer systems;
 - ii. protects the Client Access Methods, security tokens (if applicable), personal details and other confidential data.
 - iii. does not use the same Client Access Methods should not be used for different websites, applications or services. The Client Access Methods should not be based on guessable information such personal telephone number, birthday or other personal information;
 - iv. inform Convera immediately on the loss of the Client's mobile phone or change in mobile phone number; and
 - v. adopt security precautions and practices including up-to-date anti-virus, anti-spyware, firewall software and operating systems on their devices and computer, remove file and print sharing, make regular back up of critical data, consider the use of encryption technology, log off online sessions when complete, clear browser cache after the online session, does install software or run programs of unknown origin, does not open email attachments from strangers, does not disclose sensitive information to little-known or suspect websites, does not use a computer or a device which cannot be trusted and does not use public computers to access the Online Payment System.

5.3 The Client's use of the Online Payment System. The Client understands the importance of security and agrees to use the Online Payment System solely in the ordinary course of the Client's business and agrees to restrict Online Payment System access.

5.4 Site Administrator. The Client must appoint and maintain the appointment of a Site Administrator and provide Convera with the name of that individual. The Site Administrator is responsible for maintaining the security of the